

JEFF OSUNA; ET AL. vs. RIVER DELTA UNIFIED SCHOOL DISTRICT; ET AL.
Case No. CU24-09522

Motion to Compel Depositions; Motion for Protective Order

TENTATIVE RULING

Motion to Compel Depositions

Plaintiffs' motion to compel the depositions of Defendants Wright, Lamera, and Cornelson is denied as premature.

A motion to compel deposition may be filed "[i]f, after service of a deposition notice, a party ..., ***without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it***". (Code Civ. Proc. § 2025.450(a), emphasis added.) A deposition notice must be served at least ten days before the date scheduled for the deposition. (Code Civ. Proc. § 2025.270(a).) The party served with the deposition notice has until three calendar days prior to the deposition date to serve a written objection. (Code Civ. Proc. § 2025.410(a).)

Plaintiffs served their deposition notices on February 4, 2026. (Decl. of Nessa Osuna, Exh. E.) The very next day, Plaintiffs filed this motion to compel. Defendants had no opportunity to serve objections to the notices or fail to appear for the scheduled depositions.

Motion for Protective Order

Defendants' motion for protective order is granted in part.

To the extent Defendants seek a protective order requiring Plaintiffs to limit any depositions to one day, the motion is granted. Unless the court has allowed additional time, a deposition must be limited to seven hours of total testimony, which should be able to be accomplished in a single day. (Code Civ. Proc. § 2025.290(a).) If Plaintiffs are unable to fairly examine the deponent within a day and the deponent does not agree to appear for another day, Plaintiffs may seek leave from the court for additional time. (*Ibid.*)

In all other respects, the motion is denied.

Plaintiffs are entitled to notice depositions 20 days after the appearance of any defendant in the action. (Code Civ. Proc. § 2025.210(b).) "Pleading deficiencies generally do not affect either party's right to conduct discovery." (*Mattco Forge v. Arthur Young & Co.* (1990) 223 Cal.App.3d 1429, 1436, fn. 3.) And, "California law permits the use of discovery to get information necessary to plead a cause of action." (*Union Mut. Life Ins. Co. v. Superior Court* (1978) 80 Cal.App.3d 1, 11.) The pendency of a

demurrer challenging Plaintiffs' pleading does not cause Defendants' discovery obligations to become unduly burdensome.

Defendants raised, for the first time in reply, the claim that Defendant Lamera is a high government official who should not be subject to deposition absent a showing of compelling reasons under the "apex doctrine". The court will not "consider issues raised for the first time in a reply brief." (*Am. Indian Model Schs. v. Oakland Unified Sch. Dist.* (2014) 227 Cal.App.4th 258, 275.)

JOSEPH GULLO vs. AHP SERVICING, LLC; ET AL.
Case No. CU24-09570

AMROCK's Demurrer to Complaint

TENTATIVE RULING

Defendant AMROCK TITLE CALIFORNIA ("AMROCK") demurs to Plaintiff JOSEPH GULLO's first amended complaint alleging violation of the Fair Debt Collection Practices Act and unlawful business practices.

Plaintiff's opposition filed May 7, 2026 concedes the insufficiency of the operative complaint. Plaintiff requests leave to amend. Leave to amend should be allowed when a defect is capable of cure. (*Vaccaro v. Kaiman* (1998) 63 Cal.App.4th 761, 768.) It is the pleading party's burden to show the trial court that a reasonable possibility exists that amendment can cure identified defects in that party's pleading. (*Murphy v. Twitter, Inc.* (2018) 60 Cal.App.5th 12, 42.) Policy favors liberal granting of leave to amend where there is no prejudice to the opposing party. (*Miles v. City of Los Angeles* (2020) 56 Cal.App.5th 728, 739.) The Court finds a reasonable possibility that Plaintiff can amend his complaint to cure defects in his first amended complaint.

AMROCK's demurrer is sustained with leave to amend. Plaintiff must file his second amended complaint within 20 days of the date of service of this order.

EBONAE WEBB vs. PACE SOLANO INC.
Case No. FCS058246

Motion to Strike Punitive Damages and Other Irrelevant Allegations from Plaintiffs' Complaint

TENTATIVE RULING

Preliminarily, the court has earlier advised Plaintiff EBONAE WEBB ("WEBB") that the claims she has asserted on behalf of her minor children can only be pursued by appointment of a guardian ad litem, and that this guardian must be represented by a